

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY2GO CARGO CORP.,

DOCKET NO.: 25-14

Complainant,

v.

OAK WAY CARGO, LLC,

Respondent.

RESPONDENTS' MOTION TO DISMISS COMPLAINANT'S COMPLAINT

Respondent OAK WAY CARGO, LLC (“Oak Way Cargo”), files this Motion to Dismiss the Complaint filed by WAY2GO CARGO CORP. (“Complainant” or “Way2Go”), and in support thereof, state as follows:

INTRODUCTION

Ernani Ferraz has not been candid with the Commission. He claims to be the 51% owner of Complainant Way2Go and purports to bring this action on its behalf. Compl. ¶ 5. He alleges in the Complaint that Way2Go’s former director (Rafael Alves) and a former de-facto manager (Deigo De Sousa Santana) formed the competing company of Oak Way for the purpose of misappropriating Complainant’s assets. Compl. ¶ 6, 8,9. He now seeks the Commission’s help to supposedly right those wrongs.

Ferraz’s complaint is a sham—and he has deliberately concealed key information from the Commission. Oak Way is not a competing company set up by rogue former employees to steal Way2Go’s business, as Ferraz alleges. Rather, Oak Way is a company that was opened after Way2Go was no longer operational, and is run by Alves, who is the 49% beneficial owner of



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Way2Go, and Santana, who has been in contract with Ferraz to purchase Way2Go since September 2024.

To make a long story short, since 2020, Santana worked for Way2Go as an independent contractor, managing its accounts payable and receivables. On September 2, 2024, Santana entered into a Contract with Ferraz to purchase his ownership interest in Way2Go and three other companies (the “Contract”). A copy of the Contract is attached in the appendix as **Exhibit A**. Shortly after Santana paid the bulk of the purchase price due under the Contract, Ferraz restricted Santana’s access to companies’ QuickBooks, preventing him from managing accounts payable, accounts receivable, or issuing invoices. Ferraz then set about destroying Way2Go.

He stopped all company payments, causing freight shipments to remain stuck at port, incurring demurrage fees.irate customers refused to continue doing business with Way2Go and key employees fled. Ferraz then stole \$218,959.50 from Way2Go and transferred it into his personal bank accounts. By March of 2025, Way2Go was no longer a going concern due to Ferraz’ misconduct.

Hoping to break ties with Ferraz and to move on, Santana and Alves started offering services through a new company, Oak Way—but Ferraz refuses to let go. He is intent on destroying Oak Way, and he filed the sham complaint with the Commission for the sole purpose of doing so.

Crucially, the complaint fails to mention that when Ferraz filed this action supposedly on behalf of Way2go, Alves and Santana had *already filed three lawsuits in Florida state court against Ferraz related to this subject matter*—the earliest of which was filed nearly six months ago. *See* Complaints, attached in the appendix as **Exhibits B, C, D and E** (collectively, the “Florida Actions”). Those lawsuits are all premised on Ferraz’ Contract to sell Way2Go to



Santana and Ferraz' subsequent destruction of Way2Go. Specifically, they bring causes of action for fraud in the inducement, rescission, breach of contract, unjust enrichment, and breach of fiduciary duty, and declaratory relief. *Id.*

Instead of bringing his supposed grievances against Oak Way as Counterclaims in the Florida Actions (where they belong), Ferraz initiated this proceeding in front of the Commission—which is a curious choice—considering the ongoing Florida litigation and the fact that the Commission doesn't have jurisdiction to hear the common law claims that Ferraz asserts here.

One need not look very far to ascertain Ferraz's motivations: he wants to cripple Oak Way's operations. As shown by Exhibit D to the Complaint, on June 4, 2025, Ferraz emailed the Commission asking it to deny Oak Cargo's license application and to have U.S. immigration enforcement agencies bar both Santana and Alvez from entering the U.S. With this Complaint, Ferraz seeks to up the ante. The Commission should not be party to Ferraz's scheming.

There are more than sufficient legal grounds to dismiss the action that Ferraz purports to bring on behalf of Way2Go. First, Ferraz brings this suit under 46 U.S.C §40901(a), but that statute is limited to remedying direct injury caused by someone operating without a license. None of the harm that Ferraz alleges on behalf of Way2Go stems from Oak Way's purported failure to have a license. Second, the harm that Way2Go claims it suffered is harm that derives common law causes of action, such as fraud, which cannot be heard by the Commission. Oak Way has a Seventh Amendment right to a jury trial.

Finally, to the extent that the Commission isn't inclined to outright dismiss the action, it should stay the proceeding until the Florida Court has had the opportunity to resolve the Florida Actions. To not do so would violate the long-standing first-filed rule, which prohibits a party



from bringing substantially the same litigation in more than one forum. That will ensure that there aren't inconsistent rulings and will conserve judicial resources.

ARGUMENT

1. The Commission Should Dismiss the Action Because Complainant Has Not Plausibly Alleged a Direct Injury as a Result of the Purported Violation of 46 U.S.C §40901(a)

Rule 8(a)(2) of the Federal Rules of Civil Procedure requires a complaint to contain a “statement of the claim showing that the pleading is entitled to relief[.]” Rule 112(b)(6) provides for the dismissal of a claim for “failure to state a claim upon which relief can be granted.” Fed. R. Civ. P. 12(b)(6).¹ On a motion to dismiss, a complaint must “state a claim to relief that is plausible on its face.” *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 570 (2007). “A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct allege.” *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). The plausibly standard requires more than a mere probability “that a defendant has acted unlawfully. Where a complaint pleads facts that are ‘merely consistent with’ a defendant’s liability, it ‘stops short of the line between possibility and plausibly of “entitlement to relief.”” *Id.* (quoting *Twombly*, 550 U.S. at 557).

Here, Complainant fails to state a claim showing that he is entitled to relief. Complainant purports to bring this action based on a violation of 46 U.S.C §40901(a), which requires that “a person in the United States may not advertise, hold oneself out, or act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary’s license issued by the

¹ “Rule 12 of the Commission’s Rules states that the Federal Rules of Civil Procedure will be followed in instances that are not covered by the Commission’s Rules, to the extent that application of the Federal Rules is consistent with sound administrative practice The ‘Commission looks to Federal Rule of Civil Procedure . . . 12(b)(6) when considering dismissals based on failure to state a claim.’” 46 C.F.R. § 502.12. *WAY INTERGLOBAL NETWORK, LLC, Complainant v. SHENZHEN UNIFELIX SCM LIMITED, Respondent*, 2023 FMC LEXIS 3, *2 (FMC Jan. 5, 2016) (internal citations omitted).

Federal Maritime Commission.” 46 U.S.C § 41305 permits the Commission to award “the payment of reparations to the complainant for actual injury caused by a violation.” But Complainant has failed to plausibly plead that it was injured due to Oak Way Cargo, LLC supposedly not having a license.

At its core, Complainant alleges that Oak Way interfered with Way2Go’s business operations and by opening a competing company to “misappropriate Way2Go’s assets, clients, operational infrastructure, and FMC license.” Compl. ¶ 9. It then alleges that Oak Way “utilized Way2Go’s FMC license number and identity on shipping documentation” and “diverted the proceeds rightfully owed to Way2Go into unauthorized bank accounts.” Compl. ¶¶ 11, 15. It continues to allege that due to this “ongoing fraud,” “Way2Go has suffered and continues to suffer ongoing and irreparable harm.” Compl. ¶¶ 19, 21. It further specifies that the harm is “lost customers, lost revenue, interference with commercial relationships, reputational damage, regulatory exposures, and the loss of business opportunities.” Compl. ¶ 23.

What’s glaringly absent, however, is how that purported harm was caused by Oak Way’s alleged lack of license. The heart of Complainant’s complaint is that Oak Way conducted a fraud, interfered with its commercial relationships, stole its customers, and diverted funds. Those are all common law causes of action that have nothing to do with whether Oak Way was or was not licensed. Thus, Complainant has failed to plausibly allege that there was an “actual injury” that was “caused by a violation”—as required by 46 U.S.C § 41305.

Were the Commission to find that Complainant’s allegations did constitute an “actual injury” under 46 U.S.C § 41305, there would be no end. It would effectively permit a plaintiff to shoehorn into 46 U.S.C § 40901(a) any sort of action against an allegedly unlicensed shipper.



For example, it would permit the family of a person murdered by an unlicensed shipper to bring a cause of action before the Commission. That plainly is not the law.

Unsurprisingly, a cursory review of other decisions of the Commission makes clear that violations of 46 U.S.C §40901(a) are typically confined to cease and desist orders. For example, in *CMI Dist. v. Service by Air, Inc., Radiant Customs Services Inc., and Las Freight Systems Ltd.*, FMC No. 17-05, 2021 WL 4453617 *15, 20 (FMC July 26, 2021), the Commission found respondents violated section 40901(a) by operating without a license, but reversed its cease-and-desist order because the ALJ found it was unlikely the respondent would continue to operate unlicensed. Similarly, in *Atlantic Shipping Company, Inc. v. Di Nos Shipping, Inc.*, FMC No. 11-13, 2012 WL 11914701, *13-14 (ALJ Apr. 17, 2012), the complainant sought *only* a cease-and-desist order and (not reparations) because the violation turned solely on the respondent's unlicensed status.

Here the complaint is not limited to a request for a cease and desist. Instead, Complainant seeks sweeping relief related to common law causes of action *that it did not even plead*. Accordingly, the Commission should dismiss the complaint with prejudice so the parties can resolve their pending claims in the Florida state action—where this dispute belongs.

2. The Commission Should Also Dismiss the Action Because the Relief Complainant Seeks Exceeds the Jurisdiction of the Federal Maritime Commission and Would Violate Oak Way's Seventh Amendment Right to a Trial by Jury

It's plain from the text of 46 U.S.C §40901(a) that Congress did not intend to permit a plaintiff to bring any cause of action against an allegedly unlicensed shipper. Rather, that provision only authorizes a plaintiff to bring a complaint for **direct injury** caused by the shipper's failure to have a license. In seeking to have the Commission go beyond the plain text of the statute, Complainant invites the Commission into error.



Complainant's causes of action sound in fraud, theft, and tortious interference with business relationships. *See* Compl. ¶¶ 19, 23 (alleging that Oak Way engaged in "fraud" and that Complainant has suffered "lost customers, lost revenue, interference with commercial relationships, reputational damage, regulatory exposures, and the loss of business opportunities."). Those are well-established common law causes of action, which require a jury trial under the Seventh Amendment. *See* Seventh Amendment to the U.S. Constitution ("In Suits at common law, where the value in controversy shall exceed twenty dollars, the right of trial by jury shall be preserved..."). As such, the Commission does not have the jurisdiction to hear Complainant's claims.

The Supreme Court's decision in *Granfinanciera v. Nordberg* is instructive. 492 U.S. 33, 40 (1989). In *Granfinanciera*, the Supreme Court overturned the Eleventh Circuit and found that the bankruptcy court erred in adjudicating a cause of action for fraudulent transfer because it violated the defendant's right to a jury trial under the Eleventh Amendment. Specifically, the Court found that a fraudulent transfer was considered as suit in "common law" because it was the type of action that would typically be brought in a court of law in England and because the remedy sought was legal in nature. *Id.* at 41-50. It then found that the cause of action was a "private right" (as opposed to a public one that may not be guaranteed a trial under the Seventh Amendment) because it was a "quintessential[] suit at common law that more nearly resembles state-law [] claims." *Id.* at 56-57. It thus determined that the Bankruptcy Court erred in assuming jurisdiction over the case.

The same is true here. There is no doubt that causes of action for fraud, theft, and tortious interference with business relationships are causes of action that would be brought in courts of law—and not courts of equity—and the remedy sought is legal in nature. *Granfinanciera v.*



Nordberg, 492 U.S. 33, 47-48, 109 S. Ct. 2782, 2793 (1989) (collecting cases showing what types of actions are considered non-equitable); *Pernell v. Southall Realty*, 416 U.S. 363, 370 (1974) (“[W]here an action is simply for the recovery . . . of a money judgment, the action is one at law”); *Dairy Queen, Inc. v. Wood*, 369 U.S. 469, 476 (1962) (“Petitioner’s contention . . . is that insofar as the complaint requests a money judgment it presents a claim which is unquestionably legal. We agree with that contention”); *Gaines v. Miller*, 111 U.S. 395, 397-398 (1884) (“Whenever one person has in his hands money equitably belonging to another, that other person may recover it by assumpsit for money had and received. The remedy at law is adequate and complete”). They also are not the type of actions that would traditionally be brought in an admiralty court, as it is not harm that occurred on the open seas.

It’s also clear that Complainant’s causes of action are private in nature because they are analogous to contract, warranty, and fraudulent conveyance—which the Supreme Court has found to be a private right. See *Granfinanciera v. Nordberg*, 492 U.S. 33, 55-56 (1989) (citing *Northern Pipeline Construction Co.*, 458 U.S., at 71; *Schoenthal v. Irving Trust Co.*, 287 U.S., at 94-95).

Further, even if the Court were to find that it has concurrent jurisdiction over the claims by Complainant, it still should dismiss the Complaint. This Commission has previously put little weight in the mere fact that a party “won the race to the courthouse door and made the Rule 9(h) designation first.” 2007 AMC 2304, 2313, 2007 AMC 2304. The defendant is still entitled to a jury trial. *Id.* *A fortiori*, the Court should dismiss the claim here, where the core dispute between the parties was already being litigated in Florida for *nearly six months* before Complainant filed its Complaint.

3. In the Alternative, the Commission Should Stay this Proceeding Until the Florida State Court Resolves the First Filed Related Action

In the alternative to dismissing this matter outright, Oak Way respectfully requests that the Commission stay these proceedings until the pending state court litigation between Mr. Santana and Mr. Ferraz is resolved.

The Commission has clear authority to stay proceedings in the interest of judicial economy and fairness. As the Commission recognized in *General Motors LLC v. Nippon Yusen Kabushiki Kaisha*, Docket No. 15-08, 2016 FMC LEXIS 2 (F.M.C. Jan. 5, 2016), the power to stay proceedings “is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.” *Id.* (citing *Landis v. North American Co.*, 299 U.S. 248, 254 (1936)).

In that decision, the Commission applied the factors articulated by the Supreme Court in *Moses H. Cone Memorial Hospital v. Mercury Construction Corp.*, 460 U.S. 1 (1983), to determine whether to defer to a first-filed action in another forum. These factors include:

[1] which court first assumed jurisdiction, the inconvenience of the federal forum, [2] the desirability of avoiding piecemeal litigation, [3] whether state or federal law provides the rule of decision on the merits, [4] the adequacy of the state court to protect the parties' rights, and [5] whether one of the actions has a vexatious or reactive nature.

General Motors LLC v. Nippon Yusen Kabushiki Kaisha, Docket No. 15-08, 2016 FMC LEXIS 2 (F.M.C. Jan. 5, 2016) (citing *Profile Manufacturing, Inc. v. Ronald Kress*, 1994 U.S. App. LEXIS 6048, at *7 (Fed. Cir. 1994)). Here, all such factors weigh in favor of a stay.

First, the Eleventh Judicial Circuit Court in and for Miami-Dade County, Florida, assumed jurisdiction over the dispute between Mr. Santana and Mr. Ferraz many months before Mr. Ferraz, purporting to act on behalf of Way2Go Cargo Corp., initiated this administrative



complaint. Because the state court action was first filed, principles of judicial efficiency favor allowing that court to proceed before this Commission expends resources on duplicative matters.

Second, the state action and this administrative complaint arise from the same nucleus of operative facts: the September 2024 agreement for the transfer of ownership of Way2Go Cargo Corp. and related entities. This Commission proceeding is not the correct forum for resolving what is essentially a contract and ownership dispute between former business partners. The underlying issues—including the validity of the ownership transfer agreement, alleged contract breaches, and fiduciary obligations—are already before the Florida state court.

Third, the issues at the heart of this dispute are governed by Florida state law. Indeed, the administrative complaint itself seeks remedies that are grounded in state common law concepts of conversion, tortious interference, and fiduciary duty. The Florida Circuit Court is plainly the more appropriate forum to adjudicate those claims.

Fourth, the Florida Circuit Court can provide all necessary relief, including damages and equitable orders governing ownership and management.

Fifth, the administrative complaint is inherently vexatious and reactive in nature. Way2Go filed its complaint in this action only after Mr. Ferraz became a defendant in the state action, and it transparently seeks to relitigate the same ownership and control disputes in a different forum.

In short, all factors weigh heavily in favor of staying this proceeding. The Florida court is the first-filed and proper forum to resolve the parties' disputes over ownership, conversion, and business interference. Allowing this administrative action to move forward would waste resources, risk inconsistent judgments, and reward forum-shopping. Accordingly, in the



alternative to dismissing this action, the Commission should impose a stay pending a resolution in the Florida state court action.

CONCLUSION

Because Complainant failed to allege that the state court process is inadequate and failed to plead actual damages, all counts must be dismissed. If this proceeding were to continue, it would violate Oak Way's constitutional rights to a jury trial. Oak Way respectfully requests that this Court dismiss the Counts with prejudice.

WHEREFORE, Respondent OAK WAY CARGO, LLC, by and through undersigned counsel, respectfully requests that this Commission enter an Order: (1) dismissing all Counts of the Complaint with prejudice or, in the alternative, staying this proceeding until the Florida Actions are concluded; and (2) granting such other and further relief as the Commission deems just and proper.

Dated: August 25, 2025.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via e mail upon the Office of the Secretary at secretary at secretary@fmc.gov and served upon all counsel of record for WAY2GO CARGO CORP. at sarah@epgdlaw.com on this 25th day of August, 2025.

By: /s/ Schneur Zalman Kass
SCHNEUR ZALMAN KASS



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